



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: North Range Business Park Annexation
Date: July 8, 2024

Background:

The item for consideration is a resolution to allow the City to proceed with a City-initiated annexation pursuant to Wyoming Statute § 15-1-402. North Range Business Park utilizes outside user agreements with BOPU to provide services. These agreements stipulate that the land owners agree to be annexed once contiguous with the City. With an annexation earlier in 2024, the City annexed land south of the park, making the business park contiguous to City limits for the purposes of state statute.

The proposed Governing Body review schedule is as follows:

- Introduction and referral July 8, 2024
- Public Services Committee July 16, 2024
- Final consideration July 22, 2024

On March 29, 2024, City staff mailed a notice to the affected agencies pursuant to the Outside User Agreement dated May 5, 2005, and recorded at Book 1882, Page 18.

According to state statute, the City may annex a property under 40 acres without landowner consent, as long as a majority of owners within the annexation do not protest the annexation. Any property over 40 acres which pays property taxes and is not 100% surrounded by City limits requires written consent from the landowner. The properties meeting these requirements serviced by BOPU have given written consent in their Outside User Agreement. There is one adjacent property which does not currently have an Outside User Agreement which has been added to this annexation for convenience of the landowner, and that owner has given written consent to this annexation.

Annexation also requires establishing a City zone. The current County zone is a PUD and requires consideration to properly modify into City zoning.

Attachments:

1. Resolution
2. Map of properties
3. Existing Outside User Agreements
4. Written consent for property over 40 acres not subject to an Outside User Agreement

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CERTIFYING COMPLIANCE WITH WYOMING STATUTE § 15-1-402 FOR THE CITY-INITIATED ANNEXATION OF TRACTS OF LAND SITUATE IN PORTIONS OF SECTIONS 4 AND 5, T13N, R67W, 6TH P.M., LARAMIE COUNTY, WYOMING (ALSO KNOWN AS 'NORTH RANGE BUSINESS PARK', LOCATED NORTHWEST OF THE I-80 AND ROUNDTOP ROAD INTERCHANGE)."

WHEREAS, the City of Cheyenne desires to initiate annexation proceedings for a portion of Sections 4 and 5, T13N, R67W, Laramie County, Wyoming, said tract of land more particularly described as follows:

Lot 3, Block 1, North Range Business Park; Lots 1-2, Block 6, North Range Business Park, 3rd Filing; Lots 1-2, Block 8, North Range Business Park, 3rd Filing; Lots 1-5, Block 9, North Range Business Park, 3rd Filing; Lots 1-6, Block 10, North Range Business Park, 3rd Filing; Lots 1-2, Block 11, North Range Business Park, 3rd Filing; Lot 2, Block 12, North Range Business Park, 4th Filing; Lot 3, Block 1, North Range Business Park, 5th Filing; Lots 1-2, Block 13, North Range Business Park, 6th Filing; Lots 2-4, Block 15, North Range Business Park, 8th Filing; Lot 1, Block 17, North Range Business Park, 10th Filing; Lot 1, Block 16, North Range Business Park, 11th Filing; Lot 1, Block 18, North Range Business Park, 12th Filing; Lots 1-3, Block 1, North Range Business Park, 13th Filing; Lot 1, Block 1, North Range Substation; Lot 1, Block 1, BHE Ready Subdivision;

AND

The rights of way for Diamond Creek Drive, Veta Drive, Logistics Drive, McKinney Drive, and Horizon Drive as platted with North Range Business Park, 3rd Filing (noting that "Diamond Creek Drive" as shown on the plat was renamed "Bruns Way" on April 7, 2020, by action of the Board of County Commissioners), Laramie County, Wyoming.;

WHEREAS, Wyoming Statute § 15-1-404 outlines the requirements of local governments in initiating annexation proceedings and requires that a resolution be adopted certifying compliance with Wyoming Statute § 15-1-402;

WHEREAS, the proposed annexation is compliant with Wyoming Statute § 15-1-402. The proposed annexation meets the following criteria found in Wyoming Statute § 15-1-402(a):

(i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town;

(ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town;

(iii) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;

(iv) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of Wyoming Statute § 15-1-407;

(v) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyoming Statute § 15-1-410; and

(vi) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by Wyoming Statute § 15-1-405(a), will send by certified mail to all landowners and affected public utilities within the territory a summary of the annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by Wyoming Statute § 15-1-405(a).

WHEREAS, an annexation report has been created by the annexing City, containing, at a minimum, the required information from Wyoming Statute § 15-1-402(c).

WHEREAS, the City of Cheyenne shall prepare for each landowner and affected public utility so requesting in writing, the estimated cost of infrastructure improvements required of the landowner and affected public utility related to the annexation pursuant to Wyoming Statute § 15-1-402(e);

WHEREAS, the annexation of this land does not create an area which is situated entirely within the boundaries of the City but is not annexed; and

WHEREAS, all land meeting the criteria under Wyoming Statute § 15-1-412 requiring an owner's written consent for annexation has had an owner give written consent to the annexation.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the land described above is compliant with Wyoming Statute § 15-1-402, and that the procedures outlined in Wyoming Statute § 15-1-405 and Wyoming Statute § 15-1-406 shall hereby be initiated.

PRESENTED, READ AND ADOPTED this _____ day of _____,
2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

LEGEND

 AREA TO BE ANNEXED

APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming,
this _____ day of _____, 2024.

Mayor

ATTEST: _____
City Clerk

ANNEXATION AREA

TOTAL AREA: 836.79 ACRES

ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 0%

Adjacent per Wyoming State Statute 15-1-402 (b) (across I-80 highway) annexation and ratio to total perimeter - 19%

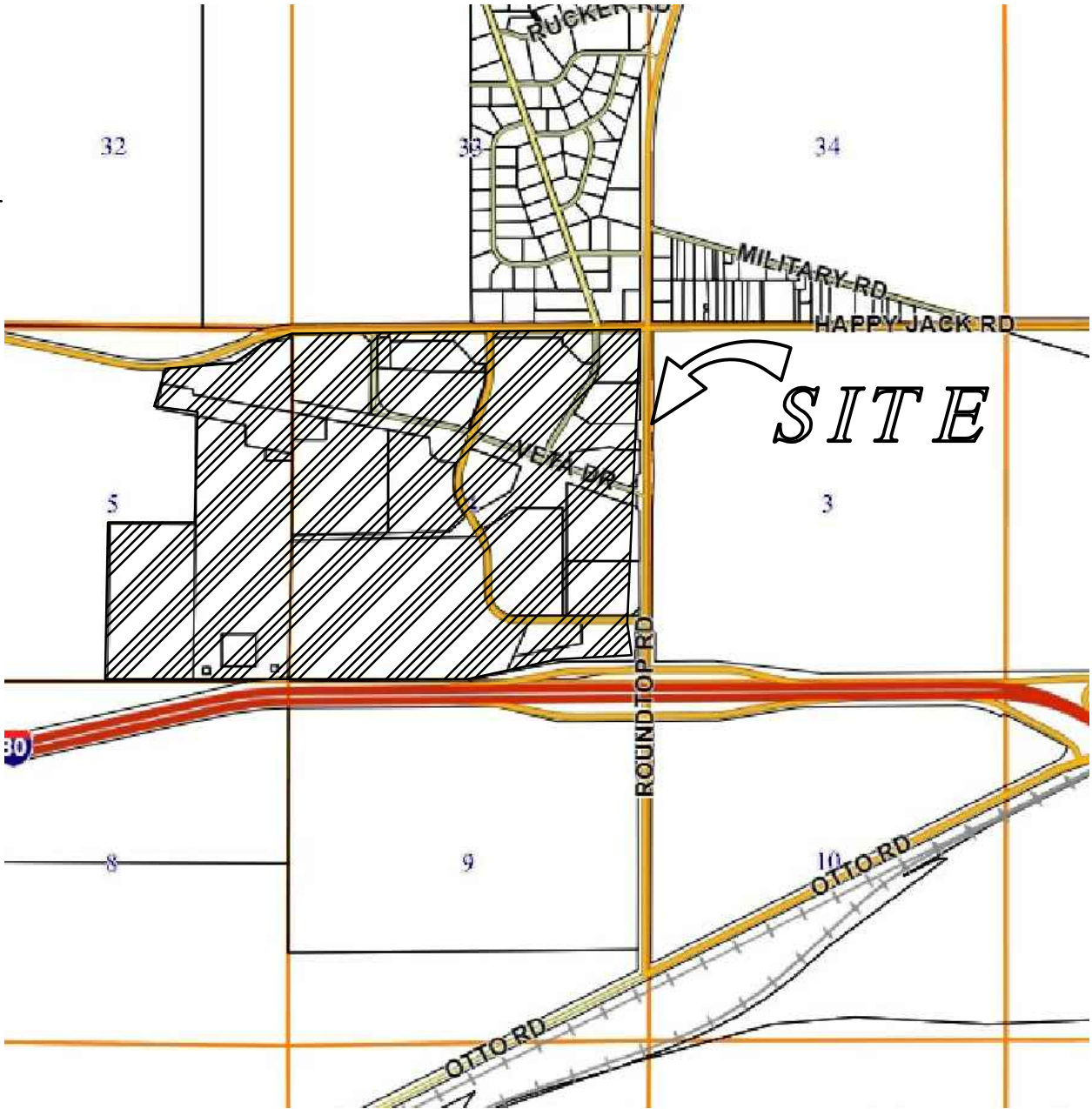
ANNEXATION DESCRIPTION

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Lots 1-2, Block 11, North Range Business Park, 3rd Filing;
Lot 2, Block 12, North Range Business Park, 4th Filing;
Lot 3, Block 1, North Range Business Park, 5th Filing;
Lots 1-2, Block 13, North Range Business Park, 6th Filing;
Lots 2-4, Block 15, North Range Business Park, 8th Filing;
Lot 1, Block 17, North Range Business Park, 10th Filing;
Lot 1, Block 16, North Range Business Park, 11th Filing;
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FILING RECORD

EXHIBIT A
ANNEXATION MAP
OF
NORTH RANGE BUSINESS PARK,
LARAMIE COUNTY, WYOMING



VICINITY MAP
(NOT TO SCALE)

PREPARED APRIL 2024

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

SHEET #
1 OF 4

NORTH RANGE BUSINESS PARK
SITUATE IN SECTIONS 4 & 5
T13N, R67W OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING.

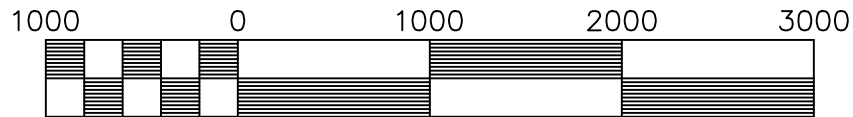
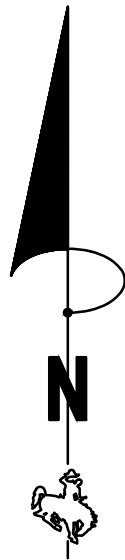
REVISED: 5/2/2024
24181 ANNEX.DWG

STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
256 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 521-9789
www.SteilSurvey.com • info@SteilSurvey.com



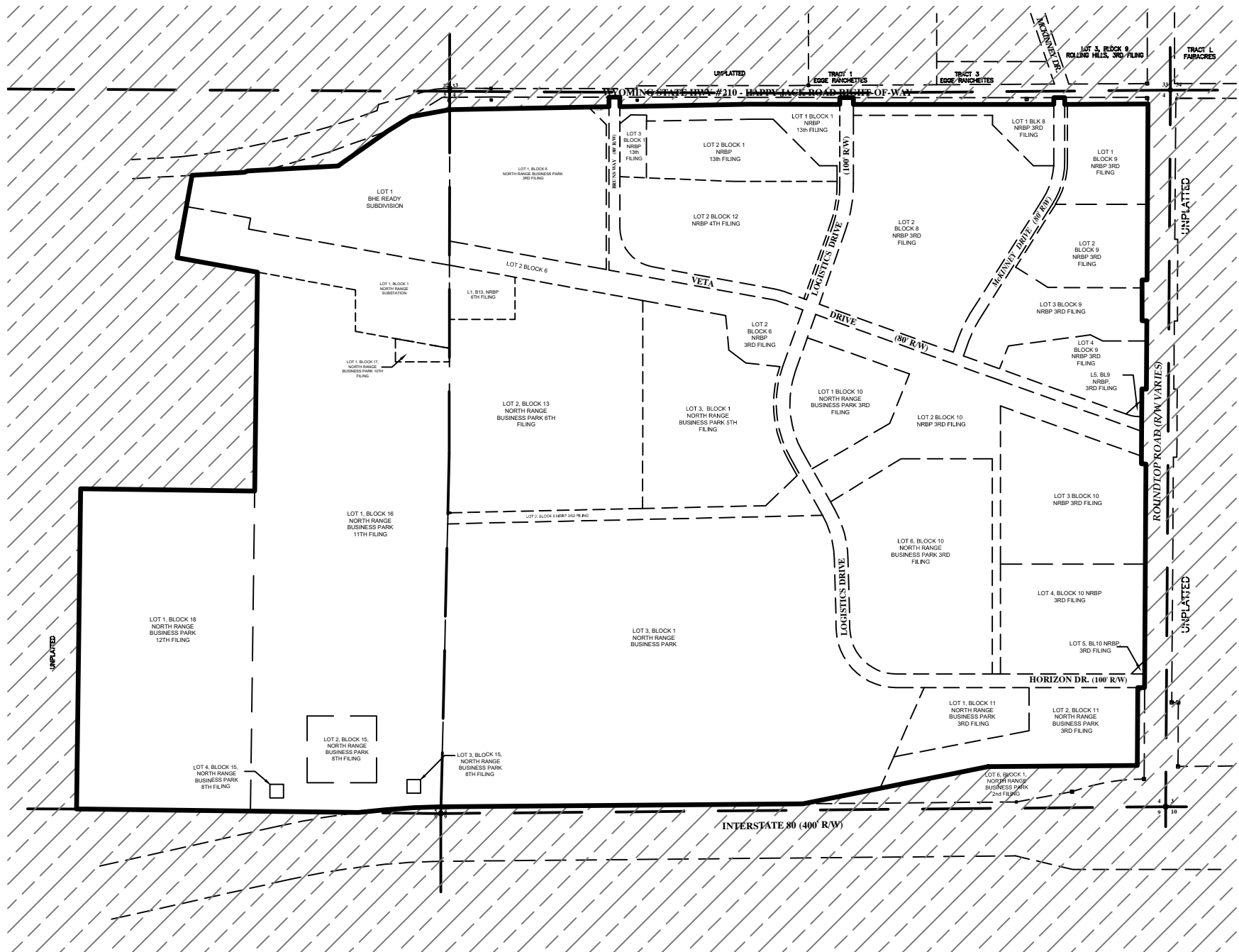
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Scale: 1" = 1000'

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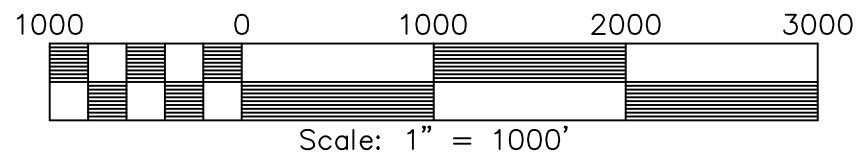
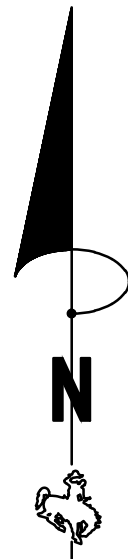
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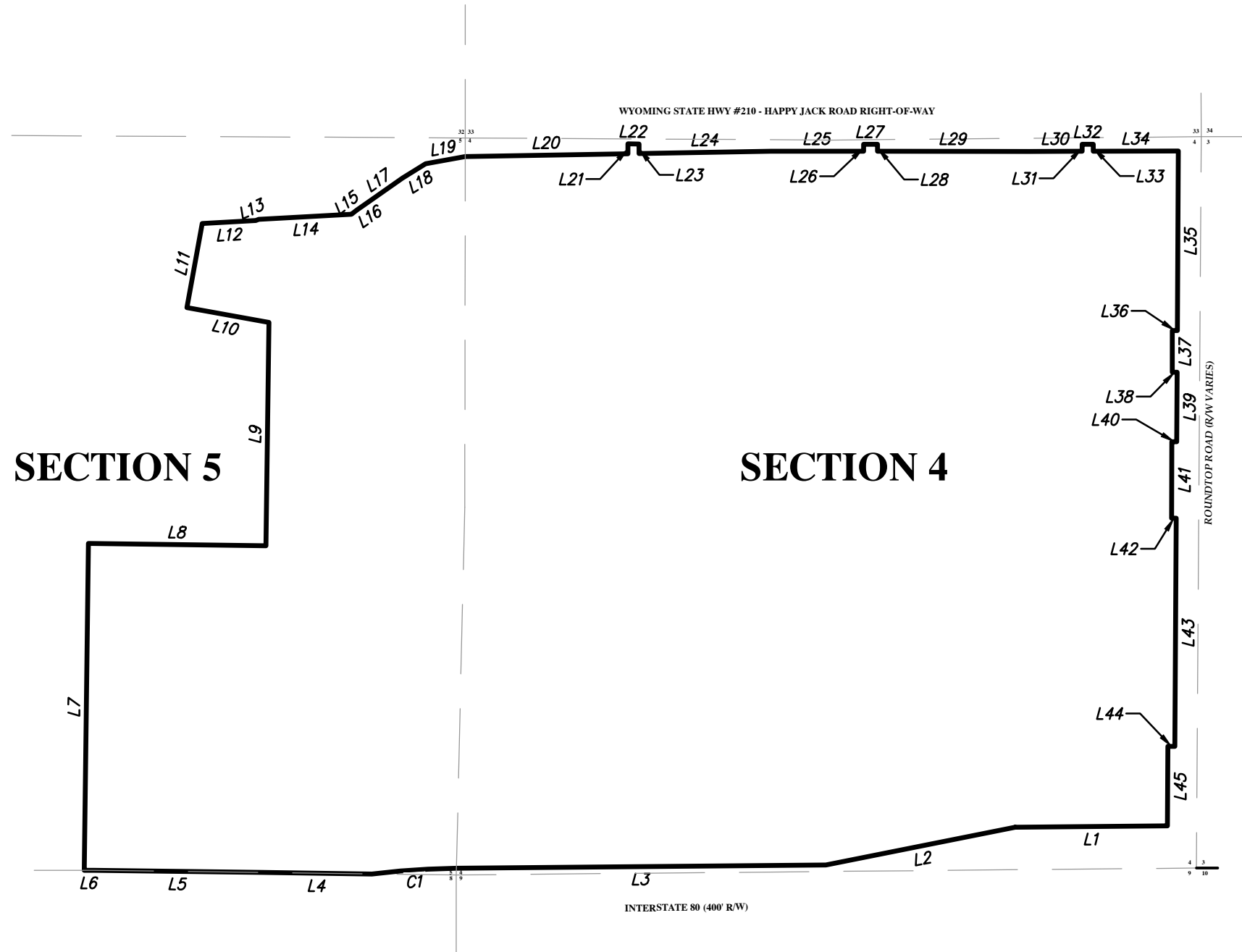


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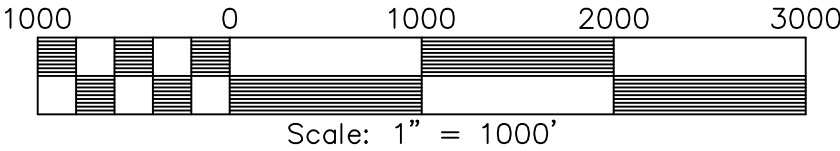
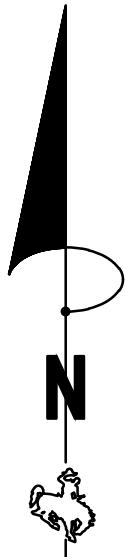
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CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	5° 53' 10"	5929.60'	S86° 05' 14"W	608.90'	609.17'

LINE TABLE		
Line #	Bearing	Length
L1	S89° 31' 56"W	1094.80'
L2	S78° 41' 09"W	1389.52'
L3	S89° 31' 22"W	2655.24'
L4	N89° 15' 43"W	791.89'
L5	N89° 15' 43"W	1206.14'
L6	N89° 55' 40"W	70.82'
L7	N0° 44' 26"E	2350.70'
L8	S89° 15' 43"E	1276.96'
L9	N0° 44' 26"E	1606.77'
L10	N79° 45' 14"W	599.85'
L11	N10° 17' 48"E	614.39'
L12	N86° 46' 01"E	386.87'
L13	N65° 31' 19"E	22.45'
L14	N86° 51' 01"E	667.70'
L15	N52° 45' 09"E	48.07'
L16	N55° 07' 45"E	107.21'
L17	N54° 59' 50"E	293.45'
L18	N58° 21' 24"E	196.59'
L19	N79° 32' 59"E	289.47'
L20	N89° 00' 22"E	1169.86'
L21	N0° 00' 00"E	70.47'
L22	S89° 55' 13"E	80.09'
L23	S0° 04' 20"W	68.90'

LINE TABLE		
Line #	Bearing	Length
L24	N88° 57' 27"E	948.93'
L25	S89° 56' 04"E	666.14'
L26	N0° 00' 00"E	50.10'
L27	S89° 56' 35"E	100.00'
L28	S0° 00' 00"E	50.00'
L29	S89° 56' 35"E	1088.30'
L30	N89° 50' 18"E	383.20'
L31	N0° 00' 00"E	50.00'
L32	N89° 50' 18"E	80.00'
L33	S0° 00' 00"E	50.00'
L34	N89° 50' 18"E	611.35'
L35	S0° 20' 06"W	1291.34'
L36	N89° 39' 55"W	35.76'
L37	S0° 12' 50"W	300.00'
L38	S89° 39' 55"E	35.13'
L39	S0° 20' 06"W	500.00'
L40	N89° 39' 55"W	34.07'
L41	S0° 12' 50"W	550.00'
L42	S89° 39' 47"E	32.91'
L43	S0° 20' 06"W	1641.81'
L44	S89° 59' 57"W	50.01'
L45	S0° 20' 06"W	571.80'

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Chad H. Hays
Date 3/2/05

CONTRACT # _____

DEVELOPER SANITARY SEWER SERVICES AGREEMENT

This agreement made this 5th day of May, 2005 between the City of Cheyenne, hereinafter referred to as the "CITY," a municipal corporation organized pursuant to the laws of the State of Wyoming, the Board of Public Utilities, hereinafter referred to as the "BOPU," the Cheyenne - Laramie County Corporation for Economic Development, also known as Cheyenne LEADS, and Wal-Mart Stores East, LP, a Delaware limited partnership ("WAL-MART"). LEADS is sometimes referred to as the "DEVELOPER."

WITNESSETH:

WHEREAS, the DEVELOPER is the current owner of and is desirous of developing property, hereinafter referred to as "Subdivision" or "the Property," and described as follows:

A tract of land situated in a portion of Section 4, Township 13 North, Range 67 West of the 6th P.M., a replat of the Village West First Filing and a replat of Veta Tracts, Laramie County, Wyoming, more particularly described as follows:

Beginning at a point on the west line of said Section 4 and the south line of that certain quitclaim deed recorded in Book 1752 at Page 169 from which the northwest corner of said Section 4 bears N.00°04'15"E., a distance of 133.80 feet; thence N.88°57'27"E., along said south line, a distance of 1170.22 feet; thence N.00°04'15"E., a distance of 70.47 feet to the south right-of-way line of Happy Jack Road; thence S.88°57'12"E., along said south right-of-way line, a distance of 80.00 feet; thence S.00°04'15"W., a distance of 68.90 feet to the south line of said certain quitclaim deed; thence N.88°57'27"E., along said south line, a distance of 948.92 feet; thence S.89°56'35"E., along said south line, a distance of 686.14 feet; thence N.00°00'00"E., a distance of 50.00 feet to the south right-of-way line of Happy Jack Road; thence S.89°56'35"E., along said south right-of-way line, a distance of 80.00 feet; thence S.00°00'00"W., a distance of 50.00 feet to the south line of said certain quitclaim deed; thence S.89°56'35"E., along said south line, a distance of 1088.30 feet; thence N.89°50'18"E., along said south line, a distance of 383.20 feet; thence N.00°00'00"E., a distance of 50.00 feet to the south right-of-way line of Happy Jack Road; thence N.89°50'18"E., along said south right-of-way line, a distance of 80.00 feet; thence S.00°00'00"W., a distance of 50.00 feet to the south line of said certain quitclaim deed; thence N.89°50'18"E., along said south line, a distance of 604.86 feet to the west line of Round Top Road; thence N.00°15'46"E., along said west line, a distance of 50.00 feet to the south right-of-way line of Happy Jack Road; thence N.89°50'18"E., along said south right-of-way line, a distance of 170.09 feet; thence S.00°23'06"W., a distance of 5005.59 feet to the north right-of-way line of Interstate 80; thence N.89°52'31"W, along said north right-of-way line, a distance of 146.19 feet; thence westerly along said north right-of-way line a distance of 552.10 feet along a curve concave to the south, having a radius of 1576.40 feet and a central angle of 20°04'00" (chord bearing of S.80°17'21"W., chord distance of 549.28 feet);



thence S.79°32'10"W., along said north right-of-way line, a distance of 416.42 feet; thence S.89°31'08"W., along said north right-of-way line, a distance of 4173.54 feet; thence westerly along said north right-of-way line a distance of 98.42 feet along a curve concave to the south, having a radius of 290.00 feet and a central angle of 00°29'18" (chord bearing of S.80°01'05"W., chord distance of 97.95 feet) to the west line of said Section 4; thence N.01°19'22"E., along said west line, a distance of 2595.19 feet to the west quarter corner of said Section 4; thence N.00°04'15"E. along the west line of said Section 4, a distance of 2523.02 feet to the point of beginning. Containing 632.067 acres more or less.

WHEREAS, the DEVELOPER desires to construct a sanitary sewer system to provide CITY sewer to lots within said Subdivision; and

WHEREAS, the USER(S), hereby defined as an owner of any specifically identified lot within the Subdivision, can utilize CITY sewer pursuant to the terms and conditions of this agreement;

WHEREAS, WAL-MART is a USER of the property within the subdivision designated in Exhibit C, the WAL-MART PROPERTY; and

WHEREAS, the BOPU has exclusive control of all CITY owned sanitary sewer systems and operates the same for the CITY and may furnish surplus sanitary sewer facilities to persons outside the CITY pursuant to WYO. STAT. § 15-7-404 (a) (1977) and Title 13 of the Cheyenne City Code Chapters.

NOW, THEREFORE, in consideration of the mutual promises and covenants herein contained, the parties agree as follows:

1. LEADS shall construct, at no cost to the BOPU or WAL-MART, a sanitary sewer system as required to provide service and which shall in all respects conform to the construction and design criteria as follows:

Capacity to receive an average of 85,000 gpd of outfall sewer flow from WAL-MART's proposed facility on the Property, provided by LEADS and BOPU to be delivered no later than September 1, 2006.

LEADS warrants and represents that all necessary rights-of-way and/or easements are across property owned by LEADS, and that no additional rights-of-way and/or easements will be necessary for sewer service extension. In the event that there are additional rights of way and/or easements that will be necessary for sewer service extension, BOPU and the CITY shall condemn such rights of way or easements as soon as reasonably possible. The CITY, BOPU and LEADS further warrant and represent that BOPU's existing sewer system can provide the demand loads required by the sewer distribution system and WAL-MART's needs as described above.

2. The BOPU shall allow the DEVELOPER to connect the above-referenced sanitary sewer system to the existing BOPU sanitary sewer system at points determined by the BOPU.

3. The BOPU shall provide all necessary inspections for the construction and installation of sewer mains, manholes and service line connections. The DEVELOPER shall provide the BOPU with a certificate of compliance, signed in affidavit

form by a contractor licensed in the CITY, verifying that all construction materials and trade installation of service lines, service line fittings, and termination points at the location of WAL-MART'S property line in re accordance with applicable provisions of federal, state and local codes, laws, and/or ordinances. Specific codes in effect include BOPU'S standards, Uniform Plumbing Code and Uniform Mechanical Codes.

Specific reference shall be given stating that the service line is only servicing one building. Inspection fees to be paid by the DEVELOPER shall compensate the BOPU at the then current inspection fee charged to in-CITY users.

4. Upon construction of said improvements and approval and acceptance thereof by the BOPU, the DEVELOPER shall transfer ownership of all sewer mains and manholes to the BOPU, together with all necessary easements and right-of-ways for the maintenance and operation of the same. The DEVELOPER shall warrant the improvements for a two year period from the date of transfer. USER(s) shall retain ownership of all improvements from the point of tapping into the sewer mains at the USER'S property line and shall be responsible for the maintenance, repair and upkeep thereof.

5. The DEVELOPER shall comply with all applicable federal, state and local laws, rules, regulations and ordinances governing sanitary sewer systems including but not limited to Title 13 of the Cheyenne City Code. The DEVELOPER shall comply with all technical codes applicable to in-CITY construction which use or connect to the sewer mains including the BOPU standards, Uniform Plumbing Code, and Uniform Mechanical Code.

6. The DEVELOPER and/or USER(S) shall pay 1.5 times the BOPU sewer rates presently in effect as adopted pursuant to Resolutions No. 3364 and 3365 for in-CITY users and shall be subject to all subsequent changes thereof. The DEVELOPER and/or USER(S) shall also pay a fifty dollar (\$50.00) administrative fee for each tap into a sewer main. In the event the BOPU negotiates a lower sewer rate with a similarly situated developer(s) and/or user(s), the BOPU, DEVELOPER and/or USER(S) agree to adjust the sewer rates in a manner consistent with that negotiated with the similarly situated developer(s) and/or user(s). In the event the BOPU negotiates a sewer agreement with a sewer district hereinafter created, the BOPU, DEVELOPER and/or USER(S) agree to adjust the sewer rates in a manner consistent with the sewer rates charged to the customers in said district by the sewer district; only if such sewer rate is lower than that which is set forth in the first sentence of this Paragraph 6. If annexation to the CITY takes place, the sewer rate and tap fees and other such charges will be not more than those charged to all other CITY users.

If the DEVELOPER(S) and/ or USER(S) are not connected to CITY water and utilizing the same for domestic purposes, in order to compute monthly sewer charges, DEVELOPER(S) and/or USER(S) shall install a water meter on their domestic water supply pursuant to the following conditions:

- a) the BOPU shall furnish required meters which shall remain the property of the BOPU;
- b) the DEVELOPER(S) and/or USER(S) shall provide the necessary meter vault and plumbing such that a meter can be installed;
- c) the DEVELOPER(S) and/or USER(S) shall install the meter;
- d) the BOPU shall maintain and read the meter from

which monthly sewer charges will be calculated; and

- e) the DEVELOPER(S) and/or USER(S) may meter irrigation water separate from domestic and commercial use for calculating sewer charges.

7. Monthly sewer charges shall be calculated based on actual sewer flow rates pursuant to the following conditions:

- a) Wal-Mart shall provide and install a sanitary sewer metering manhole and gravity flow meter with data recorder at a mutually agreed location. The flow meter shall be installed in accordance with the meter manufacture's recommendations and as inspected and approved by BOPU.
- b) the BOPU shall maintain and read the sanitary sewer flow meter from which monthly sewer charges shall be calculated.

8. The DEVELOPER hereby consents to the annexation of the above-referenced property in the event said property qualifies for annexation to the CITY in accordance with WYO. STAT. § 15-1-402 and Title 13 of the Cheyenne City Code as the same may be hereafter amended and, by warranty deed covenants, will require USER(S) to consent to the terms and conditions of this agreement including the annexation of the above-referenced property which utilizes the sewer mains in the event said property qualifies for annexation to the CITY in accordance with WYO. STAT. 15-1-402 and Title 13 of the Cheyenne City Code as the same may be hereafter amended. Before BOPU or the CITY commences any process or proceeding to annex the Property, BOPU and the City of Cheyenne will provide DEVELOPER and WAL-MART with prior written notice of their intent to do so. Such notice shall be provided to DEVELOPER and WAL-MART ninety (90) days prior to the commencement of such action. In the event such notice requires affirmative action by WAL-MART, and WAL-MART has not responded or replied, a second ninety (90) days prior written notice shall be given to WAL-MART.

9. No septic systems will be allowed within the Subdivision so long as sanitary sewer service is furnished by the BOPU or its successors.

10. DEVELOPER and USER(S) shall include the affirmative covenant attached hereto as Exhibit A and made a part hereof by this reference, with appropriate book and page numbers from the filing of this agreement with the Laramie County Clerk of Deeds, in all deeds from DEVELOPER and USER(S) conveying property included in the above-referenced property and hereby assign an equal right to the CITY to enforce the same.

11. The BOPU reserves the right to increase said sewer rate (to 2.0 times the in-CITY rate or the maximum allowed by law) to any property or lot within the Subdivision not annexed to the CITY if said property or lot qualifies for annexation to the CITY and the CITY requests such annexation; provided however, such right to increase said water rate shall not be exercised if the Subdivision is not annexed to the City in this instance through no fault of WAL-MART.

12. The DEVELOPER and USER(S) shall not be entitled to and hereby waive any right to reimbursement from the BOPU and CITY for the cost of constructing said sanitary sewer system. The BOPU reserves all rights to use said sanitary sewer system as part of its entire sanitary sewer and sewage disposal system as may be necessary to provide service to

areas outside the Subdivision. DEVELOPER shall not be entitled to be reimbursed for the cost of constructing the sanitary sewer system by any developers, users, and entities outside of the Subdivision for sewer service to other properties contiguous to the Subdivision, whether annexed or not, except to the extent that any current or hereafter established policy or city ordinance shall allow such reimbursement.

13. The BOPU and CITY reserve all governmental/sovereign immunities as provided by law.

14. If a provision, section, subsection, sentence, clause or phrase of this agreement is invalidated by any court of competent jurisdiction; such holding shall not affect the validity of the remainder of the agreement, which shall continue in full force and effect.

15. The terms and conditions contained herein shall be a covenant running with the land and shall extend to and be binding upon the DEVELOPER and USER(S), their heirs, devisees, personal representatives, successors and assigns.

16. This agreement contains all the agreements of the representations between the parties; except for that certain MOU and Purchase Agreement by and between DEVELOPER and WAL-MART. None of the terms of this agreement shall be waived or modified to any extent, except by written instrument signed and delivered by both parties.

17. Time is of the essence of this Agreement.

18. LEADS, BOPU, and CITY shall be responsible for their own negligence. None of the parties shall indemnify the others. If any damage occurs or action or proceeding ("Claims") by a non party is taken or brought against LEADS, CITY, or BOPU by reason of this Services Agreement, LEADS, CITY, or BOPU shall provide notice of same to WAL-MART. Upon receipt of notice of Claims against LEADS, BOPU, or the CITY, WAL-MART shall take necessary and appropriate action as it deems necessary to protect WAL-MART's interests with regard to the Claims.

19. BOPU, CITY, and LEADS acknowledge that at this time the Property lies within the boundaries and jurisdiction of the County. Upon information and belief, except as specifically set out herein, there are no other municipalities or local governmental or quasi-governmental entities with jurisdiction over the use and/or development of the Property, including, but not limited to, the City of Cheyenne, Wyoming. See attached Exhibit D hereto.

20. Notices. All notices and communications required or permitted to be given hereunder shall be in writing and mailed by certified or registered mail, postage prepaid, or by Federal Express, Airborne Express, or similar overnight delivery services, addressed as follows:

Ms. Shannon Letts
Wal-Mart Stores East, LP
Sam M. Walton Development Complex
2001 S.E. 10th Street, Dept. 9566
Bentonville, Arkansas 72716-0550

Randy Bruns
Cheyenne LEADS
One Depot Square
121 West 15th Street
Suite 304
Cheyenne, WY 82001

With a copy to:
Karen R. Roberts, Esquire
Wal-Mart Stores East, LP
2001 S.E. 10th Street, Dept. 8313
Bentonville, AR 72716
Attention: Legal Department

With a copy to:
Dale Cottam, Esquire
Hirst & Applegate, PC
1720 Carey Avenue
Suite 400
Cheyenne, WY 82001

With a copy to:
City of Cheyenne BOPU
Herman Noe
P.O. Box 1469
Cheyenne, WY 82003

With a copy to:
City of Cheyenne
City Attorney
2101 O'Neil Avenue
Cheyenne, WY 82001

21. To the extent allowed by law, LEADS, CITY and BOPU shall cooperate with and assist WAL-MART in making application for and obtaining a Freeport Exemption for the inventory stored in the Project if an inventory, *ad valorem*, or other similar tax now exists or is hereafter imposed. Such cooperation shall include working with WAL-MART and applying for necessary waivers from the taxing body.

IN WITNESS WHEREOF, the parties hereto have executed this agreement on the date first above written.

CHEYENNE BOARD OF PUBLIC UTILITIES

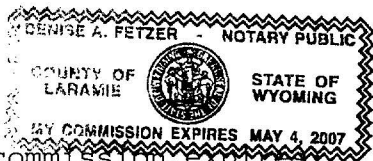
BY:

Timothy E. Wilson
Director

STATE OF WYOMING)
) ss
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Timothy E. Wilson, on behalf of the Cheyenne Board of Public Utilities this 17 day of March, 2005.

Witness my hand and official seal.



Denise A. Fetzer
Notary Public

My commission expires 05/04/2007



CITY OF CHEYENNE

BY:

Jack R. Spiker
JACK R. SPIKER, MAYOR

ATTEST:
Carol A. Intlekofer
CAROL A. INTLEKOFER, CITY CLERK

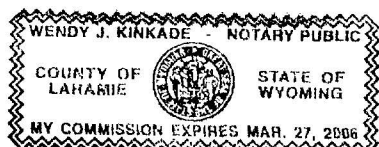
STATE OF WYOMING)
) ss
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Jack R. Spiker, Mayor, on behalf of the City of Cheyenne this 15th day of March, 2005.

Witness my hand and official seal.

Wendy J. Kinkade
Notary Public

My commission expires: 3/27/06



DEVELOPER(S) :

Cheyenne - Laramie County
Corporation for Economic
Development (Cheyenne LEADS)

By: Tandy S. Bruner

WAL-MART STORES EAST, LP, a
Delaware limited partnership

By: WSE Management,
LLC, its General Partner

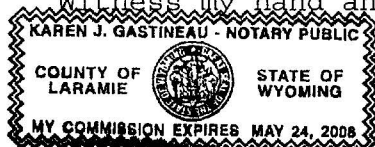
Approved as to legal terms only
by [Signature]
WAL-MART LEGAL DEPT.
Date: 4/21/07

By: Shannon Letts
Shannon Letts
Director
Real Estate
Distribution Centers

STATE OF WYOMING)
) ss
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Tandy S. Bruner, on behalf of Cheyenne LEADS this 17 day of March, 2005.

Witness my hand and official seal.



Karen J. Gastineau
Notary Public

My commission expires: May 24, 2008

STATE OF ARKANSAS)
) ss
COUNTY OF BENTON)

The foregoing instrument was acknowledged before me by Shannon Letts, Director, Real Estate Distribution Centers on behalf of WSE Management, LLC, General Partner of WAL-MART STORES EAST, LP, a Delaware limited partnership this 5th day of May, 2005.

Witness my hand and official seal.

Patricia Maidt Baggett
Notary Public

My commission expires: April 21, 2014



EXHIBIT "A"

COVENANT

The above conveyance is expressly made subject to the terms and conditions of the DEVELOPER SANITARY SEWER SERVICES AGREEMENT recorded in book_____ and pages_____ with the Laramie County Clerk of Deeds, such terms and conditions to be binding upon and to be observed by the Grantee(s) herein (his, her, their) heirs, executors, administrators and assigns, and to run with and bind the land in favor of and to be enforceable by the Grantor and their legal representatives, heirs, successors and assigns including the City of Cheyenne, Wyoming. In the event of a violation or non-observance of the terms and conditions of said DEVELOPER WATER SERVICES AGREEMENT, the Grantor, their legal representatives, heirs, successors and assigns including the City of Cheyenne, Wyoming, shall have the right to enforce the same including but not limited to granting consent to the annexation on behalf of the Grantee(s); and no act or admission upon the part of any of the beneficiaries of this clause shall be a waiver of the operation or enforcement of such condition.

BOPU\WTRSWR\STDAGR\DEVS\SEWER4.AGR

**OUTSIDE USER WATER/SEWER
SERVICES AGREEMENT**

This agreement made this 30 day of November, 2016 between the City of Cheyenne, hereinafter referred to as the "CITY," a municipal corporation organized pursuant to the laws of the State of Wyoming, acting by and through its Board of Public Utilities, hereinafter referred to as the "BOPU," and Microsoft Corporation, hereinafter referred to as the "USER."

WITNESSETH:

WHEREAS, the USER is the current owner of and is desirous of connecting the property described as follows to the CITY water and sanitary sewer systems:

Lot 3, Block 13, North Range Business Park Sixth Filing,
according to the official plat filed for record in Laramie County, Wyoming; and

WHEREAS, the BOPU has exclusive control of all CITY owned waterworks and sanitary sewer systems and operates the same for the CITY and may furnish surplus water and sanitary sewer facilities to persons outside the CITY pursuant to WYO. STAT. § 15-7-404 (a) and Title 13 of the Cheyenne City Code.

NOW, THEREFORE, in consideration of the mutual promises and covenants herein contained, the parties agree as follows:

1. The BOPU shall allow the USER to connect the above-referenced property to the existing BOPU water distribution system and sanitary sewer system at points determined by the BOPU.
2. The BOPU shall provide all necessary inspections for the construction and installation of the service line connections. The USER shall provide the BOPU with a certificate of compliance, signed in affidavit form by a contractor licensed in the CITY, verifying that all construction materials and trade installation of service lines, service line fittings, and termination points at or in USER's buildings and at the location of the USER's buildings and at the location of the USER's water meter are in accordance with applicable provisions of federal, state and local codes, laws, and/or ordinances. Specific codes in effect include BOPU's standards, International Plumbing Codes and International Mechanical Codes. Specific reference shall be given stating that 1) there are no taps off of the service line between the water meter and the water main; 2) that a BOPU water meter has been installed; 3) a backflow prevention device has been installed; and (4) that the service lines are only servicing one building. Inspection fees to be paid by the USER shall compensate the BOPU at 1.5 times the then current inspection fee charged to in-City users. The cost of the water meters installed will be paid for by the BOPU, not the users.
3. The USER shall retain ownership of all improvements from the point of tapping into the water and sewer mains and shall be responsible for the maintenance, repair and upkeep thereof. The BOPU shall retain ownership of the water meter and shall be responsible for the maintenance, repair and upkeep thereof.
4. The USER shall comply with all applicable federal, state and local laws, rules, regulations and ordinances governing sanitary sewer systems including but not limited to the applicable chapters of Cheyenne City Code Title 13. The USER shall comply with all technical codes applicable to in-City construction which use or connect to the sewer mains including the BOPU standards, International Plumbing Codes and International Mechanical Codes.

5. The USER shall pay 1.5 times the BOPU water and sewer rates presently in effect for in-City users and shall be subject to all subsequent changes thereof. The USER shall pay 1.5 times the BOPU water and sewer tap fees, system development fees and all other applicable rates and fees. In the event the BOPU negotiates a different water and/or sewer rate with a similarly situated user, the BOPU and USER agree to adjust the water and/or sewer rates in a manner consistent with that negotiated with the similarly situated user. In the event the BOPU negotiates a water and/or sewer agreement with a district hereinafter created, the BOPU and USER agree to adjust the water and/or sewer rates in a manner consistent with the water and/or sewer rates charged to the customers in said district by the water and/or sewer district. If annexation to the CITY takes place, the water and sewer rate and tap fees and other such charges will be not more than those charged to all other CITY users.

6. The USER hereby consents to the annexation of the above-referenced property in the event said property qualifies for annexation to the CITY in accordance with WYO. STAT. § 15-1-402 and Cheyenne City Code Chapter 1.16 as the same may be hereafter amended and, by warranty deed covenants, will require future users to consent to the terms and conditions of this agreement including the annexation of the above-referenced property which utilizes the water and sewer mains in the event said property qualifies for annexation to the CITY in accordance with WYO. STAT. 15-1-402 and Cheyenne City Code Chapter 1.16 as the same may be hereafter amended.

7. No drilling of water wells will be allowed within said property and no water wells shall be connected to the BOPU water system so long as water service is furnished by the BOPU or its successors. No septic systems will be allowed within said property so long as sanitary sewer service is furnished by the BOPU or its successors.

8. The USER shall include the affirmative covenant attached hereto as Exhibit A and made a part hereof by this reference, with appropriate book and page numbers from the filing of this agreement with the Laramie County Clerk of Deeds, in all deeds from USER conveying property included in the above-referenced property and hereby assign an equal right to the CITY to enforce the same.

9. The BOPU reserves the right to increase said water and sewer rate (to 2.0 times the in-CITY rate or the maximum allowed by law) to any property or lot within the above-referenced property not annexed to the CITY if said property or lot qualifies for annexation to the CITY and the CITY requests such annexation.

10. The BOPU and CITY reserve all governmental/sovereign immunities as provided by law. The USER shall indemnify and hold harmless the BOPU and CITY, their officers, agents, employees and representatives from any claim or liability arising out of the failure to comply with the terms and conditions of this agreement or from any other action regarding the construction of said water distribution and sanitary sewer systems.

11. If a provision, section, subsection, sentence, clause or phrase of this agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of the agreement, which shall continue in full force and effect.

12. The terms and conditions contained herein shall be a covenant running with the land and shall extend to and be binding upon the USER, its heirs, devisees, personal representatives, successors and assigns.

13. This agreement contains all the agreements of the representations between the parties. None of the terms of this agreement shall be waived or modified to any extent, except by written instrument signed and delivered by both parties.

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RECP #: 698232
RECORDED 12/15/2016 AT 2:12 PM BK# 2527 PG# 488
Debra K. Lee, CLERK OF LARAMIE COUNTY, WY PAGE 2 OF 4

RECP #: 697263
RECORDED 12/1/2016 AT 1:58 PM BK# 2525 PG# 545
Debra K. Lee, CLERK OF LARAMIE COUNTY, WY PAGE 2 OF 4

IN WITNESS WHEREOF, the parties hereto have executed this agreement on the date first above written.

BOARD OF PUBLIC UTILITIES

BY:

Timothy E. Wilson
Tim Wilson, Director of the Board of Public Utilities

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Before me, a Notary Public in and for the state and county aforesaid, personally appeared Timothy E. Wilson, with whom I am personally acquainted, and who, upon oath, acknowledged that he/she is the Director of the City of Cheyenne Board of Public Utilities, and that he/she executed the foregoing instrument for the purposes therein contained, by signing his/her name as such officer.

Witness my hand and official seal at office in the state and county aforesaid, this 30th day of November, 2016

Denise A. Fetzer
Notary Public

My commission expires: 04/08/2019



MICROSOFT CORPORATION

BY:

Daniel T. Krug
Signature
DANIEL T. KRUG PROJ. MGR.
Print Name and Title

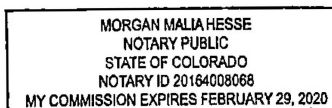
STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Before me, a Notary Public in and for the state and county aforesaid, personally appeared Daniel T. Krug, with whom I am personally acquainted, and who, upon oath, acknowledged that he/she is the Project Manager of MICROSOFT CORPORATION, and that he/she executed the foregoing instrument for the purposes therein contained, by signing his/her name as such officer.

Witness my hand and official seal at office in the state and county aforesaid, this Sept. day of 16, 2016.

Morgan Malia Hesse
Notary Public

My commission expires: Feb. 29, 2016



RECP #: 698232

RECORDED 12/15/2016 AT 2:12 PM BK# 2527 PG# 489
Debra K. Lee, CLERK OF LARAMIE COUNTY, WY. PAGE 3 OF 4

RECP #: 697263

RECORDED 12/1/2016 AT 1:58 PM BK# 2525 PG# 546
Debra K. Lee, CLERK OF LARAMIE COUNTY, WY. PAGE 3 OF 4

EXHIBIT "A"

COVENANT

The above conveyance is expressly made subject to the terms and conditions of the OUTSIDE USER WATER/SEWER SERVICES AGREEMENT recorded in book _____ and pages _____ with the Laramie County Clerk of Deeds, such terms and conditions to be binding upon and to be observed by the Grantee(s) herein and (his, her, their) heirs, executors, administrators and assigns, and to run with and bind the land in favor of and to be enforceable by the Grantor and their legal representatives, heirs, successors and assigns including the City of Cheyenne, Wyoming. In the event of a violation or non-observance of the terms and conditions of said OUTSIDE USER WATER/SEWER SERVICES AGREEMENT, the Grantor, their legal representatives, heirs, successors and assigns including the City of Cheyenne, Wyoming, shall have the right to enforce the same including but not limited to granting consent to the annexation on behalf of the Grantee(s); and no act or admission upon the part of any of the beneficiaries of this clause shall be a waiver of the operation or enforcement of such condition.



RECP #: 698232

RECORDED 12/15/2016 AT 2:12 PM BK# 2527 PG# 490

Debra K. Lee, CLERK OF LARAMIE COUNTY, WY PAGE 4 OF 4

RECP #: 697263

RECORDED 12/1/2016 AT 1:58 PM BK# 2525 PG# 547

Debra K. Lee, CLERK OF LARAMIE COUNTY, WY PAGE 4 OF 4



2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

